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The ongoing assault on internet freedom

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The essence of America is freedom. One of the most crucial freedoms is free speech. Democracy can't function without it. You especially need the right to criticize your government, including making jokes about it. And what a target-rich environment that is.

Unfortunately, governments are taking a bead on free speech at the state and national levels. Last year, Gov. Gavin Newsom signed into law Assembly Bill 587, by Assemblymember Jesse Gabriel, D-Woodland Hills. According to Gabriel's summary, the bill "will require social media companies to pull back the curtain and publicly disclose content moderation policies, enable greater public accountability for social media platforms that promote hate speech, disinformation, and conspiracy theories."

It's obviously a violation of the First Amendment protection against laws "abridging the freedom of speech, or of the press." And anyway, would it mandate reporting discussion of the well-known conspiracy to assassinate President Lincoln?

When he signed AB 587, Newsom said, "California will not stand by as social media is weaponized to spread hate and disinformation that threaten our communities and foundational values as a country." Actually, a foundational value of this democracy is being able to say whatever you want without governors with presidential ambitions censoring you.

No wonder, according to the Washington Free Beacon, the state is being sued by a coalition including the Babylon Bee, a satiric site, podcaster Tim Pool and Minds, a free-speech site. "While theirs is the first legal complaint, they are far from the first parties to voice qualms about the law's potential effects on free speech. Internet advocates like the Electronic Frontier Foundation fought AB 587 as it wound its way through the legislature, saying it violated the First Amendment."

"It is a blatantly unconstitutional overreach," Geoffrey Lawrence told me. He's the director of research at the Los Angeles-based Reason Foundation. "In the last couple of years, especially, people have attacked 'disinformation,' which turned out to be completely true. For example, the debate over the origin of COVID-19. Did it come from an animal? Or from a lab? It was quickly dismissed that it might have come from a lab. But now it seems that might be the case. Or at least now there's vibrant debate about it."

That's the key: we need no limit on debates in our democracy. He added, "I understand people are concerned about speech that might be threatening or dangerous in some way. But the solution to speech you don't like is more speech. Those kinds of laws are counterproductive for getting at the truth."

At the federal level, the RESTRICT Act is being advanced by Sen. Mark Warner, D-Va.

According to Warner, it "comprehensively addresses the ongoing threat posed by technology from foreign adversaries by better empowering the Department of Commerce to review, prevent, and mitigate ICT transactions that pose undue risk, protecting the US supply chain now and into the future." It's supposedly intended to prevent China from spying on Americans through TikTok and other apps — a real concern.

But it's actually another censorship bill. And Lawrence pointed out another big problem with this and AB 587. "It would be a barrier of entry for new platforms to get online," he said. "They would have to tally up all the violations of their terms of service and report them. That requires a very heavy internal bureaucracy to deal with." Which only existing big companies already have. Goodbye, innovation.

Back in the mid-1990s, I wrote the Orange County Register's editorials backing the two major bills ensuring free speech grew online. They were the Telecommunications Decency Act of 1996, especially Section 230, which reads: "No provider or user of an interactive computer service shall be treated as the publisher or speaker of any information provided by another information content provider."

It's sad to see the net now under attack, even by the state that has prospered so much from these freedoms. Let's hope the courts throw out AB 587 and the RESTRICT Act is restricted into oblivion.

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